

25PSCV04030 25PSCV04030

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-07-16

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Case Number: 25PSCV04030 Hearing Date: July 16, 2026 Dept: 6

CASE

NAME: Derek

Laing v. Eversun Solar Engineering, LLC, et al.

1. Plaintiff's

Motion to Compel Discovery Responses to Form Interrogatories, Request for Sanctions/Attorney Fees to David Snow;

2. Plaintiff's

Motion to Compel Discovery Responses to Form Interrogatories, Request for Sanctions/Attorney Fees to David Paul Flores;

3. Plaintiff's

Motion to Compel Discovery Responses to Form Interrogatories, Special Interrogatories, and Production of Documents; Request for Sanctions/Attorney Fees to High Power Electrical Contracting Inc; and

4. Plaintiff's

Motion to Compel Discovery Responses to Form Interrogatories, Special Interrogatories, and Production of Documents; Request for Sanctions/Attorney Fees to Eversun Solar Engineering, LLC

TENTATIVE

RULING

The Court GRANTS Plaintiff's Motion to Compel Discovery Responses to Form Interrogatories, Request for Sanctions/Attorney Fees to David Snow. The Court ORDERS Snow to provide complete and verified, code-compliant responses

to Plaintiff's Form Interrogatories, Set One, without objection, to Plaintiff's counsel within 20 calendar days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$810.00. Snow and Snow's counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court GRANTS Plaintiff's Motion to Compel Discovery Responses to Form Interrogatories, Request for Sanctions/Attorney Fees to David Paul Flores. The Court ORDERS Flores to provide complete and verified, code-compliant responses to Plaintiff's Form Interrogatories, Set One, without objection, to Plaintiff's counsel within 20 calendar days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$810.00. Flores and Flores' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court GRANTS Plaintiff's Motion to Compel Discovery Responses to Form Interrogatories, Special Interrogatories, and Production of Documents; Request for Sanctions/Attorney Fees to High Power Electrical Contracting Inc. The Court ORDERS High Power to provide complete and verified, code-compliant responses, including responsive documents where applicable, to Plaintiff's Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, without objection, to Plaintiff's counsel within 20 calendar days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$810.00. High Power and its counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court GRANTS Plaintiff's Motion to Compel Discovery Responses to Form Interrogatories, Special Interrogatories, and Production of Documents; Request for Sanctions/Attorney Fees to Eversun Solar Engineering, LLC. The Court ORDERS Eversun to provide complete and verified, code-compliant responses, including responsive documents where applicable, to Plaintiff's Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, without objection, to Plaintiff's counsel within 20 calendar days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$810.00. Eversun and its counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

Plaintiff is ordered to give notice of the Court's ruling within

five calendar days of this order.

BACKGROUND

This is a home renovation dispute. On November 6, 2025, plaintiff David Laing (Plaintiff) filed this action against defendants Eversun Solar Engineering, LLC (Eversun), David Snow (Snow), High Power Electrical Contracting, Inc. (High Power), David Paul Flores (Flores) (collectively, Defendants), and Does 1 through 25, alleging causes of action for breach of contract, negligence, intentional misrepresentation, and breach of implied covenant of good faith and fair dealing.

On May 29, 2026, Plaintiff moved to compel discovery responses from each of the Defendants for various written discovery requests. The motions are unopposed.

LEGAL

STANDARD

When a party fails to serve a timely response to interrogatories, the party propounding the interrogatories may move for an order compelling a response. (Code Civ. Proc., § 2030.290, subd. (b).) A party who fails to provide timely responses waives any objections, including ones based on privilege or work product. (Id., § 2030.290, subd. (a).) “The court shall impose a monetary sanction... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Id., § 2030.290, subd. (c).)

When a party fails to serve a timely response to an inspection demand, the party making the demand may move for an order compelling a response to the inspection demand. (Code Civ. Proc., § 2031.300, subd. (b).) A party who fails to provide timely responses waives any objections, including ones based on privilege or work product. (Code Civ. Proc., § 2031.300, subd. (a).) “[T]he court shall impose a monetary sanction... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction

unjust.” (Id., § 2031.300, subd. (c).)

DISCUSSION

Meet and Confer

Although meeting and conferring is not required before bringing motions to compel, this Court does require parties to meet and confer in person, by telephone, or by videoconference before bringing any motion. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 404; Dept. 6 Courtroom Information, p. 2 of pdf.) Plaintiff failed to meet and confer by any of these methods before bringing these discovery motions. (Orland Decls., ¶ 5.) The Court admonishes Plaintiff to comply with this Court’s motion filing requirements going forward.

Analysis – David Snow

Plaintiff indicates having served Form Interrogatories, Set One, on Defendant Snow on January 21, 2026, and that despite having granted extensions until May 6, 2026, Snow has not responded to those requests. (Orland Decl., ¶¶ 2-4.) The Court finds Plaintiff’s motion persuasive. The Court further construes Snow’s lack of opposition to this motion as a concession that Plaintiff’s arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, “it is assumed that [nonmoving party] concedes” that ground].) The Court therefore GRANTS Plaintiff’s motion and orders Snow to provide complete and verified, code-compliant responses to Plaintiff’s Form Interrogatories, Set One, without objection, to Plaintiff’s counsel within 20 calendar days of the Court’s order.

The Court further GRANTS Plaintiff’s request for monetary sanctions in the amount of \$810.00, comprised of 1.5 hours preparing the motion and attending the hearing on the motion, multiplied by the hourly rate of \$500.00, which the Court finds to be the reasonable hourly rate, plus the \$60.00 filing fee. Snow and Snow’s counsel of record must pay said monetary sanctions to Plaintiff’s counsel within 20 calendar days of the Court’s order.

Analysis – David Paul Flores

Plaintiff indicates having served

Form Interrogatories, Set One, on Defendant Flores on March 5, 2026, and that despite having granted extensions until May 6, 2026, Flores has not responded to those requests. (Orland Decl., ¶¶ 2-4.) The Court finds Plaintiff's motion persuasive. The Court further construes Flores' lack of opposition to this motion as a concession that Plaintiff's arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].) The Court therefore GRANTS Plaintiff's motion and orders Flores to provide complete and verified, code-compliant responses to Plaintiff's Form Interrogatories, Set One, without objection, to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$810.00, comprised of 1.5 hours preparing the motion and attending the hearing on the motion, multiplied by the hourly rate of \$500.00, which the Court finds to be the reasonable hourly rate, plus the \$60.00 filing fee. Flores and Flores' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

Analysis – High Power Electrical
Contracting, Inc.

Plaintiff indicates having served

Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, on Defendant High Power on March 5, 2026, and that despite having granted extensions until May 6, 2026, High Power has not responded to those requests. (Orland Decl., ¶¶ 2-4.) The Court finds Plaintiff's motion persuasive. The Court further construes High Power's lack of opposition to this motion as a concession that Plaintiff's arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].) The Court therefore GRANTS Plaintiff's motion and orders High Power to provide complete and verified, code-compliant responses, including responsive documents where applicable, to Plaintiff's Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, without objection, to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$810.00, comprised of 1.5 hours preparing the motion and attending the hearing on the motion, multiplied by the hourly rate of \$500.00, which the Court finds to be the reasonable hourly rate, plus the \$60.00 filing fee. High Power and its counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

Analysis – Eversun Solar Engineering, LLC

Plaintiff indicates having served Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, on Defendant Eversun on January 21, 2026, and that despite having granted extensions until May 6, 2026, Eversun has not responded to those requests. (Orland Decl., ¶¶ 2-4.) The Court finds Plaintiff's motion persuasive. The Court further construes Eversun's lack of opposition to this motion as a concession that Plaintiff's arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].) The Court therefore GRANTS Plaintiff's motion and orders Eversun to provide complete and verified, code-compliant responses, including responsive documents where applicable, to Plaintiff's Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, without objection, to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$810.00, comprised of 1.5 hours preparing the motion and attending the hearing on the motion, multiplied by the hourly rate of \$500.00, which the Court finds to be the reasonable hourly rate, plus the \$60.00 filing fee. Eversun and its counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

CONCLUSION

The Court GRANTS Plaintiff's Motion to Compel Discovery Responses to Form Interrogatories, Request for Sanctions/Attorney Fees to David Snow. The

Court ORDERS Snow to provide complete and verified, code-compliant responses to Plaintiff's Form Interrogatories, Set One, without objection, to Plaintiff's counsel within 20 calendar days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$810.00. Snow and Snow's counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court GRANTS Plaintiff's Motion to Compel Discovery Responses to Form Interrogatories, Request for Sanctions/Attorney Fees to David Paul Flores. The Court ORDERS Flores to provide complete and verified, code-compliant responses to Plaintiff's Form Interrogatories, Set One, without objection, to Plaintiff's counsel within 20 calendar days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$810.00. Flores and Flores' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court GRANTS Plaintiff's Motion to Compel Discovery Responses to Form Interrogatories, Special Interrogatories, and Production of Documents; Request for Sanctions/Attorney Fees to High Power Electrical Contracting Inc. The Court ORDERS High Power to provide complete and verified, code-compliant responses, including responsive documents where applicable, to Plaintiff's Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, without objection, to Plaintiff's counsel within 20 calendar days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$810.00. High Power and its counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court GRANTS Plaintiff's Motion to Compel Discovery Responses to Form Interrogatories, Special Interrogatories, and Production of Documents; Request for Sanctions/Attorney Fees to Eversun Solar Engineering, LLC. The Court ORDERS Eversun to provide complete and verified, code-compliant responses, including responsive documents where applicable, to Plaintiff's Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, without objection, to Plaintiff's counsel within 20 calendar days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$810.00. Eversun and its counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.